

No. __

In the Supreme Court of the United States

RITESH TANDON; KAREN BUSCH; TERRY GANNON; CAROLYN GANNON;
JEREMY WONG; JULIE EVARKIOU; DHARUV KHANNA; CONNIE RICHARDS;
FRANCES BEAUDET; MAYA MANSOUR,
APPLICANTS,

v.

GAVIN NEWSOM; ROB BONTA; TOMÁS J. ARAGÓN;
JEFFREY V. SMITH; SARA H. CODY.
RESPONDENTS.

**To the Honorable Elena Kagan
Associate Justice of the Supreme Court of the United States and
Circuit Justice for the Ninth Circuit**

**EMERGENCY APPLICATION FOR WRIT OF INJUNCTION OR IN THE ALTERNATIVE
FOR CERTIORARI BEFORE JUDGMENT OR SUMMARY REVERSAL**

RELIEF REQUESTED BY SATURDAY, APRIL 3, 2021

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QUESTION PRESENTED

In ordinary times, Pastor Jeremy Wong and Karen Busch regularly held Bible studies, prayer meetings, and worship services at their homes—as had millions of other Christians in California who sincerely believe assembling for small-group, “house church” fellowship is just as indispensable to their faith as attending Mass is for a Catholic. Yet for over a year now, California has completely prohibited or substantially restricted those “gatherings” and many others. Indoor gatherings are completely prohibited in Tier 1 counties and limited to no more than three households in Tiers 2, 3, and 4, while outdoor gatherings are limited to no more than three households in all tiers. By contrast, the State allows countless other activities to take place outdoors without *any* numerical limitations, from weddings and funerals to secular cultural events and political rallies. It also permits more than three households to congregate inside buses, trains, universities, airports, barber shops, government offices, movie studios, tattoo parlors, salons, and other commercial venues. Santa Clara County, where Wong and Busch live, is currently in Tier 3 and thus even restaurants and movie theatres can operate indoors at 50% capacity.

The question presented is: Whether California’s restrictions on “gatherings” trigger and fail strict scrutiny under the Free Exercise Clause to the extent that they prohibit (or severely restrict) at-home religious gatherings—*notwithstanding* this Court’s clear instructions that California “must place religious activities on par with the most favored class of comparable secular activities.” App. 36 (Bumatay, J., dissenting).

PARTIES AND RULE 29.6 STATEMENT

Applicants are RITESH TANDON; KAREN BUSCH; TERRY GANNON; CAROLYN GANNON; JEREMY WONG; JULIE EVARKIOU; DHRUV KHANNA; CONNIE RICHARDS; FRANCES BEAUDET; MAYA MANSOUR. Applicants are the Plaintiffs in the United States District Court for the Northern District of California and Appellants in the United States Court of Appeals for the Ninth Circuit.

Respondents are GAVIN NEWSOM, in his official capacity as Governor of California; ROB BONTA, in his official capacity as the Acting Attorney General of California; TOMÁS J. ARAGÓN, in his official capacity as the Director of the California Department of Public Health; JEFFREY V. SMITH, in his official capacity as County Executive of Santa Clara County; SARA H. CODY, in her official capacity as the Health Officer and Public Health Director of Santa Clara County. Respondents are Defendants in the United States District Court for the Northern District of California and Appellees in the United States Court of Appeals for the Ninth Circuit.

DECISIONS BELOW

All decisions in the lower courts in this case are styled *Tandon v. Newsom*. The order of the United States Court of Appeals for the Ninth Circuit, dated March 30, 2021, denying Applicants' motion for an injunction pending appeal, over the dissent of Judge Bumatay, is attached hereto at App. 1. The order of the United States District Court for the Northern District of California, dated February 19, 2021, denying Applicants' motion for an injunction pending appeal is attached hereto at App. 53. The order of the United States District Court for the Northern District of

California, dated February 5, 2021, denying Applicants' motion for a preliminary injunction, which is the order on appeal in the court of appeals, is attached hereto at App. 54 and is also available at 2021 WL 411375. The transcript of the district court's hearing on Applicants' motion for a preliminary injunction is attached hereto at App. 134. The docket number in the United States District Court for the Northern District of California is 20-cv-07108-LHK, and the docket number in the United States Court of Appeals for the Ninth Circuit is 21-15228.

JURISDICTION

Applicants have a pending interlocutory appeal in the United States Court of Appeals for the Ninth Circuit pursuant to 28 U.S.C. § 1292. This Court has jurisdiction pursuant to 28 U.S.C. § 1651.

CONSTITUTIONAL PROVISIONS

The First Amendment provides in pertinent part:

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

U.S. Const. amend. I.

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APPLICATION

**TO THE HONORABLE ELENA KAGAN,
ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES
AND CIRCUIT JUSTICE FOR THE NINTH CIRCUIT:**

This Court has issued *four orders* in just the past five months unequivocally holding that governments may not restrict the free exercise of religion—even in the name of fighting a pandemic—if comparable nonreligious activities are not subject to the same restrictions. Yet California—assisted by the Ninth Circuit, which has “disregard[ed] the lessons from [this] Court” and “turned a blind eye to discrimination against religious practice”—continues its rearguard action against the free (and safe) practice of religious faith. App. 32 (Bumatay, J., dissenting). Because of the State’s recalcitrance and the Ninth Circuit’s refusal to follow this Court’s “clear and, by now, redundant” precedents, this Court’s intervention is, unfortunately, once again necessary. App. 36 (Bumatay, J. dissenting).

In *Roman Catholic Diocese of Brooklyn v. Cuomo*, 141 S. Ct. 63 (2020), this Court enjoined a New York executive order that imposed 10- and 25-person caps on houses of worship that were harsher than restrictions on secular businesses. The regulations—which were “far more restrictive than any COVID-related regulations that ha[d] previously come before the Court”—could not survive strict scrutiny because the State “offered no evidence that applicants [] contributed to the spread of COVID-19,” and there were “many other less restrictive rules that could be adopted to minimize the risk to those attending religious services.” *Id.* at 67.

Undeterred, California continued to impose a *total prohibition* on indoor worship in Tier 1 counties—a restriction even more onerous than the regulations enjoined in *Diocese of Brooklyn*—despite allowing numerous indoor commercial activities. This Court put a stop to that unconstitutional practice in *South Bay United Pentecostal Church v. Newsom*, 141 S. Ct. 716 (2021) (*South Bay II*), and *Harvest Rock Church, Inc. v. Newsom*, – S. Ct. –, 2021 WL 406257 (Feb. 5, 2021) (*Harvest Rock Church III*). As Justice Gorsuch, joined by four other justices, explained, California’s indoor worship ban “imposed more stringent regulations on religious institutions than on many businesses,” and the State could not “thread the needle” of strict scrutiny because it failed “to explain why narrower options it finds sufficient in secular contexts do not satisfy its legitimate interests.” *South Bay II*, 141 S. Ct. at 717–19 (statement of Gorsuch, J.).

The *South Bay II* decision should have put California’s autocrats on notice that the pandemic does not provide a license to squelch religious exercise while allowing other “essential” activities—*i.e.*, activities preferred by the State—to continue with fewer restrictions. But alas, like seed falling on rocky ground, the message did not take root. Mere weeks after *South Bay II*, the County of Santa Clara had the audacity to argue that *its* total prohibition of indoor worship was generally applicable and thus subject only to rational basis review. The County contended that its gathering ban did not discriminate against religious gatherings because it “prohibit[ed] *all* indoor gatherings of *all* kinds at *all* places.” Br. of Santa Clara County in *Gateway City Church v. Newsom*, No. 20A138, at 19 (U.S. Feb. 24, 2021). But the County’s bespoke

definition of gatherings did *not* encompass commercial activities that involved large numbers of people congregating indoors for secular activities, making the County's restriction on worship every bit as discriminatory in operation as the State's. This Court made short work of the County's argument, granting the application for injunctive relief on the ground that the "outcome [was] clearly dictated by this Court's decision in *South Bay [III]*." *Gateway City Church v. Newsom*, – S. Ct. –, 2021 WL 753575, at *1 (Feb. 26, 2021).

Given this string of decisions, a reasonable observer might have expected California to be especially solicitous of the rights of believers, if simply to avoid the *appearance* of naked hostility to religion. But that is not the path the State has chosen. Instead, the State continues to enforce its onerous restrictions on "gatherings" to prohibit or sharply restrict religious gatherings to study the Bible, pray, and worship communally *in the very place "accorded special consideration in our Constitution, laws, and traditions"*—the home. *U.S. Dep't of Def. v. Fed. Lab. Rels. Auth.*, 510 U.S. 487, 501 (1994) (emphasis added). The State defines gatherings as "social situations that bring together people from different households at the same time in a single space or place." App. 190. For practical purposes, that definition is equivalent to the one put forward by Santa Clara County, which defined a gathering as "an event, assembly, meeting, or convening that brings together multiple people from separate households in a single space, indoors or outdoors, at the same time and

in a coordinated fashion.” 4-ER-879.¹

By distinguishing between “social situations” and commercial activities, the State—like the County before it—accomplishes a subtle but unmistakable religious gerrymander, conveniently excluding business gatherings from the definition of prohibited activity, even though people from many different households are allowed to be in the same place at the same time in restaurants, buses, salons, movie theaters, airports, trains, movie studios, government offices, barbershops, tattoo parlors, and elsewhere. In addition to this definitional sleight of hand, the State explicitly exempts certain activities from the gatherings ban. For example, the State allows weddings and funerals to occur outdoors with no numerical limits. It likewise allows unlimited numbers of people to engage in political protests and rallies outdoors, even though social distancing is largely impossible, shouting is common, and mask wearing infrequent at such events. The State also allows people to gather outdoors in unlimited numbers at “houses of worship,” giving some measure of protection to more traditional, ritualistic faith practices. But it does not permit an individual to gather with others in her own backyard to study the Bible, pray, or worship with members of more than two other households, all of which are common (and deeply important) practices of millions of contemporary Christians in the United States.

¹ Citations of evidentiary materials—primarily expert declarations and numerous government orders—are made through citation of the Ninth Circuit Excerpts of Record, located at *Tandon v. Newsom*, No. 21-15228 (CA9) ECF No. 13.

The State’s treatment of indoor activities is equally discriminatory. In Tier 1, indoor home-based religious gatherings are completely prohibited, while people may cluster at hair salons, barbershops, retail stores, “[p]ersonal [c]are [s]ervices” businesses, App. 183–84, and for work in the entertainment industry, 5-ER-922–23. In Tiers 2 through 4, indoor home-based religious gatherings are limited to three households, regardless of the size of the building or the safety procedures followed. Yet in Tier 2 the State continues to allow gatherings in “[p]ersonal [c]are [s]ervices” businesses, which include nail salons, tattoo parlors, piercing, and skincare salons, App. 184; 4-ER-757–83 (personal care services), and further permits crowds at museums, zoos, aquariums, movie theaters, and gyms, App. 184–85. In Tiers 3 and 4, even restaurants, wineries, breweries, cardrooms, distilleries, and bowling alleys can host gatherings indoors. App. 185–86. Yet in-home religious gatherings are still restricted to no more than three households. App. 183.

Under these rules, Pastor Wong and Karen Busch can sit for a haircut with 10 other people in a barbershop, eat in a half-full restaurant (with members of 20 different families), or ride with 15 other people on a city bus, but they cannot host three people from different households for a Bible study indoors or in their backyards. The State thus treats religious exercise far more harshly than secular activities.

Notwithstanding the State’s clear discrimination against religious exercise, the Ninth Circuit applied rational basis to the Gatherings Guidance and denied Applicants’ request for an injunction pending appeal. App. 27. The Court reached that head-scratching result based on its conclusion that “in-home secular and religious

gatherings are treated the same.” App. 27. But the State’s decision also to disfavor some *nonreligious* activity—such as in-home birthday parties or Super Bowl gatherings—does not save the State’s Gatherings Guidance from strict scrutiny, as this Court has explained, repeatedly, in *Diocese of Brooklyn*, *South Bay II*, *Harvest Rock*, and *Gateway City Church*. Instead, “regulations must place religious activities on par with the most favored class of comparable secular activities, or face strict scrutiny” App. 36 (Bumatay, J., dissenting) (citing *Diocese of Brooklyn*, 141 S. Ct. at 66–67). And none of those precedents suggests that the Free Exercise Clause applies only to formally established “houses of worship,” or that businesses and government services are not proper comparators to private homes with respect to the risk of infection, as the panel majority concluded. On the contrary, this “Court’s prior decisions ‘clearly dictated’ enjoining the restrictions,” but the Ninth Circuit “*again* fail[ed] to apply [those] precedents”—“[a]t this point, a tale as old as time.” App. 36 (Bumatay, J., dissenting).

Because the State treats religious exercise worse than comparable secular activities, the Gatherings Guidance is subject to strict scrutiny. It fails that rigorous review for the same reasons as the government orders in *Diocese of Brooklyn*, *South Bay II*, and *Gateway City Church*. While the State contends that in-home religious gatherings are riskier than other types of allowable social interactions, it has not demonstrated that the risk factors it identifies are “always present” at such gatherings or that they are “always absent from the other secular activities its regulations allow.” *South Bay II*, 141 S. Ct. at 718 (Statement of Gorsuch, J.). Nor

has the State been able to “explain why it cannot address its legitimate concerns with rules short of a total ban.” *Id.* Wong and Busch have both attested that they could host gatherings safely, and there is no reason why the State could not allow such gatherings to occur with the use of masks, social distancing, regular sanitizing, and ventilation (*e.g.*, open windows). App. 197, 201, 204–05, 207. More fundamentally, the State has not explained why it could not achieve its goals of reducing sickness and death from COVID-19 by relaxing its community-wide restrictions and focusing its protective efforts on those most vulnerable to the disease. Many other states have employed less restrictive measures to combat the pandemic with equal or superior health outcomes. California is not obligated to embrace liberty to the same extent as other states to which its citizens have been fleeing, but when it comes to core First Amendment activities, California is not free to choose the *most* restrictive means of pursuing its legitimate goals.

Given the blatant First Amendment violation here, this Court should not hesitate to enjoin the Gatherings Guidance to the extent it applies to religious gatherings at the home. These gatherings are central to Wong’s and Busch’s religious exercise, and the deprivation of their First Amendment rights even for a limited time constitutes irreparable harm. The public interest also strongly favors injunctive relief. Although the virus is still circulating at low levels in California—as it likely always will—the public health system is not under any strain, and there are currently fewer people hospitalized with COVID-19 than at any point in the past year. Millions of Californians, including the most vulnerable, have been vaccinated, and millions

more have already recovered from infection—or were infected but had no symptoms—and thus have acquired at least temporary immunity. In other words, an injunction here will not harm public health. Indeed, since this Court granted the injunctions in *South Bay II* and *Gateway City Church*, California has continued to see a steady decline in the number of deaths, hospitalizations, and confirmed cases.

For all these reasons, pursuant to Rules 20, 22, and 23 of the Rules of this Court and 28 U.S.C. §1651, Applicants respectfully request that the Circuit Justice grant this Application for an injunction precluding Respondents from enforcing the Gatherings Guidance to the extent it applies to religious gatherings in the home to study the Bible, pray, worship, and otherwise gather for communal religious exercise. Applicants ask that the injunction remain in effect until such time as the State's Gatherings Guidance is permanently withdrawn, repealed, or invalidated by a court. Because Wong and Busch hope to be able to hold Bible studies and prayer meetings on Easter and throughout the Easter season (the most important holiday season in Christianity), *they request that an injunction issue on Holy Saturday, April 3, 2021, or as soon thereafter as is practicable.*

STATEMENT OF THE CASE

A. Applicants Wong And Busch Seek To Hold Religious Gatherings In Their Homes

Pastor Jeremy Wong and Karen Busch want to host small in-person Bible studies in their homes, as both had done regularly for over two years before the pandemic. App. 196, 200. If allowed to hold such gatherings, they could (and would)

employ social distancing and other mitigation measures. App. 197, 291. Yet for more than a year, the State has prohibited Wong and Busch from hosting religious gatherings in their own homes. App. 196–97, 200–01, 204, 207.

“Communal worship, congregational study, and collective prayer are central tenets of [their] faith[s]” and “are impossible to replicate in an online format.” App. 197, 201. “The Bible commands ...certain activities such as singing and gathering in-person.” App. 197. “An online or virtual sermon cannot replicate God’s presence among an assembled church.” App. 197, 201. Matters are even worse for the members of Busch’s religious gatherings who do not have computers and are relegated to participating over the phone. App. 201.

B. The State Restricts Religious “Gatherings” But Allows Indoor And Outdoor Secular Activities

Governor Newsom proclaimed a state of emergency on March 4, 2020, after the initial outbreak of COVID-19 in California. 4-ER-614–18. Shortly thereafter, Newsom issued Executive Order N-33-20, which directed all California residents “to immediately heed the [State public health directives.” 4-ER-620. On May 4, 2020, Newsom issued Executive Order N-60-20, directing all California residents “to continue to obey State public health directives, as made available [online] and elsewhere as the State Public Health Officer may provide.” 4-ER-624. The online resource mentioned in that order, “About COVID-19 restrictions,” claims that the online “[q]uestions and answers” have the same effect as other orders of the State Public Health Officer. 4-ER-624; 4-ER-815; *see also Tandon*, No. 21-15228 (CA9) Dkt.

14 Ex. 2.² Both EO-N-33-20 and EO-N-60-20 invoke California Government Code § 8665, threatening any person who fails to obey the orders with a “misdemeanor” conviction, “\$1,000” fine, or six-months’ imprisonment. Cal. Gov’t Code § 8665; 4-ER-620; 4-ER-624.

The California Department of Public Health used its new power to impose and then eliminate several regulatory frameworks before issuing the current four-tiered, color-coded system commonly known as the “Blueprint for a Safer Economy” (“Blueprint”). Under this system, local health jurisdictions in the state may reopen specified sectors according to their respective county’s Tier. Three metrics govern the Blueprint’s tier system: (1) the average number of “cases” per 100,000 residents over a seven-day period, (2) the average amount of COVID-19 tests that come back “positive” over a seven-day period, and (3) the “health equity metric.” 4-ER-645–48; 4-ER-650–55. Applying these metrics, the Blueprint color-codes each tier as follows: Purple Tier 1 (Widespread); Red Tier 2 (Substantial); Orange Tier 3 (Moderate); Yellow Tier 4 (Minimal). 4-ER-645–46; 4-ER-651.

The Blueprint determines for each tier whether various activities can occur indoors and/or outdoors and at what capacities. *See* App. 183–89. Even in Tier 1, the State allows certain businesses to operate indoors, such as hair salons, retail stores and shopping centers (at 25% capacity), personal care services, hotels, “[l]imited

² Applicants submitted a request for judicial notice to the Ninth Circuit on March 9, 2021 to update the court on the State’s recent changes to its COVID-19 orders.

[s]ervices” (e.g., laundromats, pet grooming, and auto repair shops), and “[c]ritical [i]nfrastructure,” which includes food manufacturers, warehouses, call centers, legal and accounting services, and “the entertainment industries, studios, and other related establishments.”³ *Id.*; 5-ER-915–27. In Tiers 2–4, the State allows gatherings in “[p]ersonal [c]are [s]ervices,” which include nail salons, tattoo parlors, piercing, and skincare services, App. 184; 4-ER-757–83 (personal care services), and further permits crowds at museums, zoos, aquariums, movie theaters, and gyms, App. 184–85. And in Tiers 3 and 4 even restaurants, wineries, breweries, cardrooms, distilleries, and bowling alleys can host gatherings indoors. App. 185–86.

The State has also issued changing guidance on “gatherings.” It defines “gatherings” to mean “social situations that bring together people from different households at the same time in a single space or place.” App. 190. On March 16, 2020, CDPH banned all indoor and outdoor gatherings “across the state of California[.]” 4-ER-825. Six months later, the State “updated” this guidance but maintained its statewide ban on gatherings “unless otherwise specified.” 4-ER-828. On October 9, 2020, the State banned private indoor gatherings entirely and restricted outdoor gatherings to no more than three households in a two-hour period, provided that the venue allows six-foot physical distancing. 4-ER-831. On November 13, it again updated its guidance, prohibiting all indoor gatherings for counties in Tier 1, prohibiting gatherings in other tiers “that include more than 3 households,” and

³ California for All, *Essential Workforce* (last updated January 7, 2021), <https://covid19.ca.gov/essential-workforce/>.

prohibiting “singing, chanting, shouting, cheering, and similar activities” at indoor gatherings. App. 190–94; *see also* App. 183–89.

On February 5, 2021, in *South Bay II*, this Court enjoined the State’s prohibition on indoor worship services in Tier 1 on the grounds that it violated the Free Exercise Clause. 141 S. Ct. at 716. In response, the State amended the Blueprint to allow indoor services at “places of worship” at up to 25% capacity in Tiers 1 and 2. *Tandon*, No. 21-15228 (CA9) Dkt. 14 Ex. 2. The State also now allows “[w]edding ceremonies” and “cultural ceremonies” to be held indoors with a maximum of 25% capacity in Tier 1 (the State had previously prohibited these indoor gatherings in Tier 1). *Id.* at Ex. 4. Outdoor political rallies and protests, wedding ceremonies, cultural ceremonies, and services at places of worship are not currently subject to capacity limitations by the State. *Id.* Exs. 2 and 4; 4-ER-818–19.

Despite Respondents’ revisions and Santa Clara’s movement to Tier 3 on March 24, 2021, gatherings of more than three households remain prohibited—whether indoors or outdoors—except for political rallies and protests, cultural ceremonies, or religious services at “place[s] of worship.” *Tandon*, No. 21-15228 (CA9) Dkt. 14 Exs. 2 and 4; App. 183–89. The exempted gatherings may be held indoors up to 50% capacity or 200 persons, whichever is less, and outdoors with no capacity restrictions. *Id.*

C. Procedural History

Applicants’ complaint, filed on October 13, 2020, claims that Respondents’ orders violate their rights to free speech and free exercise under the First

Amendment, as well as their rights to earn a living and to equal protection under the Fourteenth Amendment.⁴ On October 22, 2020, Applicants moved for a preliminary injunction. Applicants Wong, Busch, Tandon, and the Gannons sought to enjoin the State of California and Santa Clara County from enforcing the Gatherings Guidance against their First Amendment-protected gatherings. Tandon (a congressional candidate) and the Gannons seek to hold campaign fundraisers and in-home political discussions, while Wong and Busch seek to hold in-home religious gatherings. Evarkiou, Khanna, Mansour, Beaudet, and Richards seek to operate their small businesses.

The district court denied Applicants’ motion for a preliminary injunction on February 5, 2021. App. 54. Addressing Applicants’ free exercise claims, the district court upheld the orders, concluding that they were neutral, generally applicable, and rationally related to a legitimate government interest. *Id.* at 121–25. In the alternative, the court held that the orders were narrowly tailored to achieve a compelling government interest. *Id.* at 126. Addressing the other preliminary-injunction factors, the district court concluded that the State’s restrictions on gatherings irreparably harmed Wong and Busch but that an injunction was not in the public interest because public health would be “endangered” if Defendants’ Orders were enjoined. *Id.* at 126–32.

⁴ While Applicants continue to assert their free speech, equal protection, and due process claims on appeal in the Ninth Circuit, their Application in this Court is limited to the free exercise claim.

Applicants appealed the district court’s decision to the Ninth Circuit and filed a motion in the district court to enjoin the orders pending appeal. The district court denied this motion in a one-sentence order on February 19, 2021. *Id.* at 53. Applicants subsequently filed an emergency motion for injunction pending appeal in the Ninth Circuit, which was denied on March 30, 2021. *Id.* at 30.

The Ninth Circuit motions panel concluded that Applicants had not demonstrated a likelihood of success on the merits of any of their claims. With respect to the free speech and assembly claims asserted by Tandon and the Gannons, the panel determined that an injunction was “unnecessary” because “the State’s gatherings restrictions do not apply to Tandon’s requested political activities, and given the State’s failure to define rallies or distinguish Tandon’s political activities from the Gannons’ political activities . . . the State’s restrictions do not apply to the Gannons’ political activities.” *Id.* at 28–29.

The panel disagreed as to whether Applicants are entitled to an injunction on their free exercise claims. The majority held that “rational basis review should apply to the State’s gatherings restrictions because in-home secular and religious gatherings are treated the same, and because [Applicants] ... have not provided any support for the conclusion that private gatherings are comparable to commercial activities in public venues in terms of threats to public health or the safety measures that reasonably may be implemented.” *Id.* at 27. Because the majority determined that Applicants had not established a likelihood of success, it declined to address

whether they were experiencing irreparable harm or whether an injunction was in the public interest. *Id.* at 27 n.12.

Judge Bumatay dissented from the majority’s resolution of the free exercise claim. He would have “grant[ed Applicants Wong and Busch] their requested injunction pending appeal of their religious freedom claim[s]” because “California has clearly infringed on Wong and Busch’s free exercise rights.” *Id.* at 32 (Bumatay, J., dissenting). Judge Bumatay concluded that strict scrutiny applies to the orders because they “disparately impact[] religious practice compared to analogous secular conduct,” which the State was unable to satisfy. *Id.* at 37–38. Judge Bumatay also determined that the loss of religious freedom constituted irreparable harm and that an injunction is in the public interest because “[n]othing in the record supports the view that Wong’s and Busch’s in-home worship is more dangerous for the spread of COVID-19 than the operation of other businesses open for customers without household caps.” *Id.* at 51–52.

REASONS FOR GRANTING THE APPLICATION

The All Writs Act, 28 U.S.C. § 1651(a), authorizes an individual Justice or the full Court to issue an injunction when (1) the circumstances presented are “critical and exigent”; (2) the legal rights at issue are “indisputably clear”; and (3) injunctive relief is “necessary or appropriate in aid of the Court’s jurisdiction.” *Ohio Citizens for Responsible Energy, Inc. v. NRC*, 479 U.S. 1312 (1986) (Scalia, J., in chambers) (citations and alterations omitted). The Court also has discretion to issue an injunction “based on all the circumstances of the case,” without its order “be[ing]

construed as an expression of the Court’s views on the merits” of the underlying claim. *Little Sisters of the Poor Home for the Aged v. Sebelius*, 571 U.S. 1171 (2014). This Court has previously granted injunctive relief when applicants “have shown that their First Amendment claims are likely to prevail, that denying them relief would lead to irreparable injury, and that granting relief would not harm the public interest.” *Diocese of Brooklyn*, 141 S. Ct. at 66; *see also South Bay II*, 141 S. Ct. at 719. A Circuit Justice or the full Court may also grant injunctive relief “[i]f there is a ‘significant possibility’ that the Court would” grant certiorari “and reverse, and if there is a likelihood that irreparable injury will result if relief is not granted.” *Am. Trucking Ass’ns, Inc. v. Gray*, 483 U.S. 1306, 1308 (1987) (Blackmun, J.); *see also Lucas v. Townsend*, 486 U.S. 1301, 1304 (1988) (Kennedy, J., in chambers) (considering whether there is a “fair prospect” of reversal).

I. The Violation Of Wong’s And Busch’s Free Exercise Rights Is Indisputably Clear, And The Lower Courts Grossly Misapplied This Court’s Recent Decisions In *Diocese of Brooklyn*, *South Bay II*, And *Gateway City Church*, Causing Confusion As To The Scope Of Those Decisions.

The First Amendment declares that the government “shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof.” U.S. Const. amend. I. As this Court has explained, “the ‘exercise of religion’” protected by the First Amendment “often involves not only belief and profession but the performance of (or abstention from) physical acts,” including “assembling with others for a worship service.” *Employment Div. v. Smith*, 494 U.S. 872, 877 (1990); *accord*

South Bay II, 141 S. Ct. at 718 (statement of Gorsuch, J.) (“[W]orshippers may seek only to ... study in small groups.”).

Although this Court has held that religious exercise concerns do not generally “relieve an individual of the obligation to comply with a ‘valid and neutral law of general applicability,’” *Smith*, 494 U.S. at 879, “[a] law burdening religious practice that is not neutral or not of general application must undergo the most rigorous of scrutiny,” *Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah*, 508 U.S. 520, 546 (1993). A law is not neutral or generally applicable if it is underinclusive, meaning the law “fail[s] to prohibit nonreligious conduct that endangers [the government’s proffered] interests in a similar or greater degree than” the burdened religious conduct. *Id.* at 543; see *Monclova Christian Acad. v. Toledo-Lucas Cnty. Health Dep’t*, 984 F.3d 477, 480 (6th Cir. 2020) (“Whether [nonreligious] conduct is analogous” is “measured against the *interests* the State offers in support of its restrictions on conduct.”). In other words, a law is underinclusive if it exempts nonreligious conduct from its purview while failing to give the same treatment “to cases of ‘religious hardship.’” *Lukumi*, 508 U.S. at 537. The analysis for neutrality and general applicability is similar because “[they] are interrelated, and ... failure to satisfy one requirement is a likely indication that the other has not been satisfied.” *Id.* at 531.

The application of these principles to COVID-related restrictions is straightforward because courts are “no longer writing on a blank slate.” App. 33 (Bumatay, J., dissenting). This Court has reiterated *four times* this term that a law

treating religious activities less favorably than “comparable” nonreligious activities (including commercial activities) triggers strict scrutiny. *Diocese of Brooklyn*, 141 S. Ct. at 66–68; *South Bay II*, 141 S. Ct. at 716; *Harvest Rock Church III*, 2021 WL 406257 at *1; *Gateway City Church*, 2021 WL 753575 at *1. This is true *regardless* of whether the law also treats some nonreligious activities just as unfavorably. *Diocese of Brooklyn*, 141 S. Ct. at 73 (Kavanaugh, J., concurring); *South Bay II*, 141 S. Ct. at 718–19 (Statement of Gorsuch, J.). Indeed, the “instructions provided by [this] Court are clear and, by now, redundant.” App. 36 (Bumatay, J., dissenting). “[R]egulations must place religious activities on par with the most favored class of comparable secular activities, or face strict scrutiny,” and secular “businesses are analogous comparators” when they involve comparable social interactions. *Id.*

A. The Gatherings Guidance Burdens Wong’s And Busch’s Free Exercise Rights

Before the pandemic, both Wong and Busch hosted weekly in-person Bible studies and communal worship in their homes with groups of eight to twelve individuals. App. 196 ¶¶2–3; App. 200 ¶¶2–3. The State’s Gatherings Guidance now prevents them, and millions of others, from gathering in their home with individuals from more than two other households to practice what they consider to be essential elements of their Christian faith. And for much of the past year, while Santa Clara County was in Tier 1, such gatherings *in their home* have been forbidden completely. This is because the State defines “gatherings” as “social situations that bring together people from different households at the same time in a single space or place.” App.

190. Encompassed within this definition are religious gatherings held in the privacy of a home or backyard. Although the State now allows indoor religious gatherings at “houses of worship”—thanks to this Court’s repeated interventions—the State does not consider a home to be a “house of worship.” At the hearing on Plaintiffs’ motion for preliminary injunction, the State insisted that rules applicable to “houses of worship” do not apply to home-based religious gatherings because houses are not zoned the same way as churches. App. 166–67; *see also* App. 80 (“[T]he Court notes that Plaintiffs’ free exercise claims do not challenge restrictions on houses of worship.”). Thus, while churches, synagogues, and mosques in Santa Clara County are now allowed to hold indoor gatherings with up to 50% capacity given the County’s recent move to Tier 3, Wong and Busch still cannot invite more than two other households, which typically means two other people, to their home for a Bible study, prayer meeting, or worship service. And while such religious gatherings could be held in their backyards, *even outdoors* the State limits “gatherings” to no more than three households. App. 183.

Both Wong and Busch offered uncontroverted declarations attesting that in-person communal religious assembly, study, and worship are indispensable to their faith, App. 197 ¶5; App. 201 ¶5, just as those same practices are to numerous other practitioners of contemporary Protestant Christianity. *See, e.g., An Introduction to Christian Theology*, THE BOISI CENTER AT BOSTON COLLEGE 15 (2021), <https://tinyurl.com/98teabak> (explaining that “Protestants” “ritualize[] prayers” through “group prayer” and “Bible study”). Remote worship, moreover, is an

inadequate substitute because not every member of their faith communities has access to such technology. *See* App. 197 ¶5; App. 201 ¶5. Yet carrying out those necessary, in-person activities with more than two other co-religionists today, even with the use of masks and social distancing, is a crime. 4-ER-620–21 (citing Cal. Gov’t Code § 8665). The burdens imposed on Wong and Bush thus easily trigger review under the First Amendment, and neither the district court nor court of appeals concluded differently. *See Gonzales v. O Centro Espirita Beneficente Uniao do Vegetal*, 546 U.S. 418, 425–32 (2006) (orders that prohibit religious ceremonies, enforced by threats of prosecution, amount to a significant burden on religious conduct); *Diocese of Brooklyn*, 141 S. Ct. at 66–67 (caps on religious worship triggered First Amendment scrutiny); *see also Sts. Constantine & Helen Greek Orthodox Church, Inc. v. City of New Berlin*, 396 F.3d 895, 900 (7th Cir. 2005) (noting “vulnerability” of more informal, less ritualized Christian practices “to subtle forms of discrimination”).

A. The Gatherings Guidance Does Not Apply Equally, As Even The Ninth Circuit Apparently Recognized, And Thus Is Subject To Strict Scrutiny

The Gatherings Guidance is substantially underinclusive, and thus it is neither neutral nor generally applicable. *See Lukumi*, 508 U.S. at 536–37, 543. The State allows a broad swath of “comparable” activities to occur, both indoors and outdoors, that implicate its purported interest in combatting the spread of COVID-19, while simultaneously prohibiting the in-home religious gatherings that both Wong and Busch wish to hold. *See Diocese of Brooklyn*, 141 S. Ct. at 66–68.

1. For example, while backyard Bible studies are limited to three households, weddings, funerals, “cultural events,” political protests and rallies, and services at conventionally defined “houses of worship” are allowed outdoors without any numerical limit—even when a county is in Tier 1. App. 3–4, 11; *Tandon*, No. 21-15228 (CA9) Dkt. 14 Ex. 2. For counties in either Tier 1 or 2, California citizens may further congregate outdoors at “wineries [or] breweries,” “kart racing [or] mini golf,” and “sports [or] live performances”—generally without any numerical limit. App. 185–87 (cleaned up). People may further muster outdoors in either tier at “movie theaters,” “gyms,” “restaurants,” “museums,” “zoos,” and more without numerical limits. App. 184–88 (cleaned up). For counties in Tier 3, like Santa Clara County, California citizens may additionally go to “[b]ars” outdoors. App. 186. Thus, although Wong or Busch could watch John Legend *sing* outdoors at one of their favorites bars or wineries, they cannot host their faith community *in their backyard* for worship, prayer, or Bible study.

The State also allows people to congregate *indoors* in numerous comparable venues and for various purposes. For example, in both Tier 1 and Tier 2, people may patronize “hair salons [or] barbershops,” “all retail,” and “personal care services.” App. 183–84 (cleaned up). “‘Personal care services’ include many businesses where hours-long physical proximity and touching is required, such as nail salons, tattoo parlors, body waxing, facials and other skincare services, and massages.” App. 38–39 (Bumatay, J., dissenting) (citing California Industry Guidance). People can also gather indoors if they are involved in “[c]ritical infrastructure,” App. 183, as well as

if they work in the entertainment industry, at a studio, or in a related establishment. See 5-ER-922–23; *Tandon*, No. 21-15228 (CA9) Dkt. 14 Ex. 4; see *South Bay II*, 141 S. Ct. at 719 (Statement of Gorsuch, J.) (noting that the “powerful entertainment industry” earned “exemption[s]” in the State’s COVID regime). For counties in Tier 3, in addition to those activities, people may assemble in “cardrooms [or] satellite wagering” places, “offices,” or “bowling alleys.” App. 186 (cleaned up). Thus, although Wong or Busch could contract out their home to Netflix for the filming of *Warrior Nun* with dozens of stagehands and actors inside, they could not host a nun and two other people from different households for an ecumenical prayer meeting. The State also “allows people to sit in relatively close proximity inside buses,” “train[s],” and airports. *South Bay II*, 141 S. Ct. at 718 (Statement of Gorsuch, J.). But five people studying the Book of Exodus in a living room is a criminal affair.

2. All of these secular gatherings are “comparable” to home-based religious gatherings. What matters under the Free Exercise Clause is whether the exempted activities carry analogous or comparable risks of harm, such that exempting them “undermines the purposes of the law to at least the same degree as the covered conduct that is religiously motivated.” *Blackhawk v. Pennsylvania*, 381 F.3d 202, 209 (3d Cir. 2004) (Alito, J.) (citing *Lukumi*, 508 U.S. at 543–46); accord *South Bay II*, 141 S. Ct. at 718 (listing comparators, such as “train stations” or “retailers,” that present same risks of COVID spread); *Monclova Christian Academy*, 984 F.3d at 480 (“[C]onduct is analogous” as “measured against the *interests* the State offers in support of its restrictions on conduct.”); *Yellowbear v. Lambert*, 741 F.3d 48, 60 (10th

Cir. 2014) (Gorsuch, J.) (“[U]nderinclusiveness” means a “failure to cover significant tracts of conduct implicating the law’s animating and putatively compelling interest.”). In this case, the exempted nonreligious activity *is* comparable to in-home religious conduct because both present the same risks of viral spread that California is purportedly trying to prevent.

The panel majority stated without evidence that “when people gather in social settings, their interactions are likely to be longer than they would be in a commercial setting” and “that participants in a social gathering are more likely to be involved in prolonged conversations.” App. 19. But there is no evidence to support that speculative assertion. After all, the State allows customers to be in “the close physical proximity of hairstylists or manicurists” who “touch and remain near [their customers] for extended periods,” while others wait inside for their appointments. *South Bay II*, 141 S. Ct. at 718 (statement of Gorsuch, J.); *accord* App. 39 (Bumatay, J., dissenting) (“Some personal care services may even allow their clients to forego masking.”). The State also permits “scores [of people to] pack into train stations or wait in long checkout lines” at retail stores and airports. *South Bay II*, 141 S. Ct. at 718 (statement of Gorsuch, J.). And the State does not impose any limits on the amount of time people can sit on a bus, eat in a restaurant, or film inside a movie studio.

The panel majority further stated—in the face of evidence to the contrary—that “private houses are typically smaller and less ventilated than commercial establishments” and “that social distancing and mask-wearing are less likely in

private settings and enforcement is more difficult.” App. 19. But both Wong and Busch offered uncontroverted declarations attesting that they could “hold communal gatherings in a way that protects [their] guests.” App. 197 ¶6; App. 201 ¶6. Wong, for instance, owns “large outdoor spaces” where he can host “in-person gathering[s] ... where attendees could socially distance by more than six feet.” App. 197 ¶6. And their guests *would wear* “masks, gloves, screens, or other devices to protect and inhibit the spread of COVID-19.” *Id.*; App. 201 ¶6. They could (and would) also adopt many of the same safety and sanitizing measures that the panel majority championed for industries, including personal care services, that the State permits to open. *Compare* App. 20–22, *with* App. 197 ¶6; App. 201.

In all events, the panel’s opinion itself demonstrates that the State’s orders are underinclusive. According to the panel majority, indoor “political activities”—including “debates, fundraisers, [] meet-the-candidate events,” and “small-group political discussions”—are exempted from the State’s orders. App. 28–29. The upshot of the panel’s opinion is thus that the Gannons can gather with more than three households for political discussions—such as whether Governor Newsom should be recalled—but Wong and Busch are prohibited from gathering to discuss Christ’s admonition to “render unto Caesar.” *See* Matthew 22:21–23. The indoor political discussions that the Gannons are now allowed to have undeniably involve the same risks of harm that the State offers in support of its restrictions. Other allowable First-Amendment activities, including gatherings for rallies and protests, involve even

greater risks of spread, as these gatherings can involve enormous crowds, shouting, and limited mask wearing.⁵ App. 24–25.

The panel majority’s holding makes even less sense now that Santa Clara County is in Tier 3. There is zero evidence that an indoor Bible study is riskier than a trip to the movies, dinner in a restaurant, a workout in a gym, or a gathering with dozens of friends at a winery, brewery, distillery, or bowling alley.

To be sure, judges are “not scientists,” *South Bay II*, 141 S. Ct. at 718 (statement of Gorsuch, J.), but it does not require any special expertise to appreciate that the exempted conduct—*e.g.*, movie studios filming in private homes, tattoo parlors operating in narrow spaces, or hairstylists touching their customers—presents the same risks of viral spread as indoor religious gatherings. “[T]he State’s present determination,” in other words, “appears to reflect not expertise or discretion, but instead insufficient appreciation or consideration of the interests at stake.” *Id.* at 717 (Roberts, C.J., concurring).

⁵ With little explanation, the panel majority inserted ambiguity into “rally” and “protest” under the State’s orders by arbitrarily defining them as occurring only in “public spaces.” App. 24–25. But “rally” and “protest” are not limited to “public spaces.” *See, e.g.*, “Rally,” Merriam-Webster, <https://tinyurl.com/ybwu22hc> (“[T]o muster for a common purpose.”). And, in all events, the “government officials who created California’s complex regime” should not be permitted “to benefit from its confusing nature.” *South Bay II*, 141 S. Ct. at 719 n.2 (statement of Gorsuch, J.). And even if there is ambiguity here, and there is not, the rule of lenity favors Wong and Busch—not the State—because the State’s order subjects its transgressors to criminal punishment. 4-ER-620–21; *see United States v. Davis*, 139 S. Ct. 2319, 2333 (2019).

The State argued below that its ban on in-home religious services is justified because it applies to all private gatherings whether secular or religious. The panel majority agreed, holding that “[w]hen compared to analogous secular in-home private gatherings, the State’s restrictions on in-home private religious gathering are neutral and generally applicable and, thus, subject to rational basis review.” App. 8. But that is the very argument this Court rejected in *Gateway City Church*. There, the County insisted that *its* ban on indoor gatherings did not trigger strict scrutiny because it “prohibit[ed] *all* indoor gatherings [] regardless of where they occur and regardless of purpose.” Br. of Santa Clara County in *Gateway City Church v. Newsom*, No. 20A138, at 19 (U.S. Feb. 24, 2021). Because the County, like the State, permitted secular business activities that present the same risk of infection as other types of “gatherings,” this Court unceremoniously rejected that argument and enjoined the County’s order as to indoor worship services, holding that “[t]his outcome is clearly dictated by ... [*South Bay II*].” *Gateway City Church*, 2021 WL 753575, at *1. There is no daylight between the State’s orders here and the County’s order in *Gateway City Church*.

Because California “impos[es] more stringent regulations on religious [gatherings] than on many businesses” or other types of conduct that present the same risk of transmitting COVID-19, its orders are subject to strict scrutiny. *South Bay II*, 141 S. Ct. at 717–18 (statement of Gorsuch, J.).

B. The State’s Three-Household Limit On Religious Gatherings Cannot Survive Strict Scrutiny

“Strict scrutiny is a searching examination, and it is the government that bears the burden” of proof. *Fisher v. University of Texas at Austin*, 570 U.S. 297, 310 (2013). Specifically, the government must establish that the law is “justified by a compelling governmental interest and ... narrowly tailored to advance that interest.” *Lukumi*, 508 U.S. at 531–32. The State’s orders fail strict scrutiny because there are far less restrictive options available to advance the State’s asserted interest in combatting the spread of COVID-19.

For example, the State allows dozens or even hundreds of people to congregate in various commercial and government settings with basic precautions—masking and social distancing—that could be employed in the home. *See* App. 183–89. Both Wong and Busch attested that they could (and would) incorporate the same mitigation measures used in commercial settings—masks, distancing, ventilation, sanitizing—“to protect and inhibit the spread of COVID-19.” App. 197 ¶6; App. 201 ¶6; *see also* App. 48 (Bumatay, J., dissenting) (explaining that Wong and Busch can sanitize just like “nail parlors and other small business). The State has never explained why the same mitigation measures that allow hundreds of people to shop in a Wal-Mart, wait in an airport terminal, eat at a restaurant, or ride a bus, could not be used to responsibly host religious gatherings—both indoors and outdoors.

The State also employs percentage capacity restrictions that allow larger gatherings in larger spaces. Similar restrictions could be employed for in-home

gatherings. For example, movie theatres and restaurants in Santa Clara County are currently allowed to operate at 50% capacity (or 200 people, whichever is fewer), App. 184–85, and the State does not explain why a similar limitation could not be applied to religious gatherings in the home.

The State argued below that religious gatherings are inherently more risky than other types of commercial activity, but this Court rejected the exact same argument in *South Bay II*. There, the State attempted to defend a similar restriction against houses of worship on the ground that worship services “involve (1) large numbers of people mixing from different households; (2) in close physical proximity; (3) for extended periods; (4) with singing.” 141 S. Ct. at 718 (statement of Gorsuch, J.). Although the Court recognized the State’s compelling interest in reducing the spread of COVID-19, it nonetheless invalidated the orders insofar as they imposed more severe restrictions on religious gatherings than commercial activities. California could not satisfy narrow tailoring because it is not true that those “four factors are always present in worship [] or always absent from other secular activities its regulations allow.” *Id.* For example, while the State “presume[d] that worship inherently involves a large number of people,” some “worshippers may seek only to pray in solitude, go to confession, or *study in small groups*.” *Id.* (emphasis added). Moreover, while the State asserted that commercial activities entailed less human contact—“scores might pack into train stations or wait in long checkout lines in the businesses the State allows to remain open.” *Id.*

The logic of *South Bay II* “applies with equal force to worship and prayer within the home.” App. 43 (Bumatay, J., dissenting). Although the State applied eight “objective criteria” to purportedly show that private, in-home gatherings greatly risk the spread of COVID-19, “these criteria are nearly word for word the same ones rejected” by *South Bay II*. *Id.* In short, it is simply not the case that these factors “are always present in [private gatherings] or always absent from other [] activities [the] regulations allows.” *South Bay II*, 141 S. Ct. at 718 (statement of Gorsuch, J.).

Nor has the State “explain[ed] why it cannot address its legitimate concerns with rules short of a total ban.” *Id.* The panel majority’s broad and unsupported factual conclusions concerning private gatherings could equally apply to “the close physical proximity of hairstylists or manicurists” who California allows to operate while “they touch and remain near [their customers] for extended periods.” *Id.* at 718; *accord* App. 39–40 (Bumatay, J., dissenting) (discussing personal care services and tattoo parlors).

The State also “allows people to sit in relatively close proximity inside buses,” airports, and trains. *South Bay II*, 141 S. Ct. at 718 (statement of Gorsuch, J.). The State has decided that less restrictive options are available for these settings—including “social distancing requirements, masks, cleaning, plexiglass barriers, and the like”—yet it has persisted in completely banning (or severely limiting) First Amendment-protected gatherings regardless whether such precautions are used. *Id.* at 718–19; *accord* App. 44 (Bumatay, J., dissenting). And though the panel majority raised the specter that social gatherings may last longer, App. 19, the State does “not

limit ... citizens to running in and out of other establishments.” *South Bay II*, 141 S. Ct. at 719 (statement of Gorsuch, J.). “[N]o one is barred from lingering in shopping malls, salons, or bus terminals.” *Id.* And if “the State is truly concerned about the ‘proximity, length, and interaction’ of private gatherings, as it claims, it could regulate those aspects of religious gatherings in a narrowly tailored way” by applying the same rules it affords to “barbershops, tattoo ... parlors,” and more. App. 44 (Bumatay, J., dissenting). The State has yet to explain its decision to adopt a total ban (or three household cap) rather than placing a “reasonable limit” on the length of indoor religious gatherings. *South Bay II*, 141 S. Ct. at 719 (statement of Gorsuch, J.).

The panel majority opined that these less restrictive options are not practicable because the Fourth Amendment prevents the government from entering private homes “at will” to enforce masking and social distancing restrictions. App. 22. But as Judge Bumatay recognized, the fact that private homes cannot be regulated as easily as private industry cuts in precisely the opposite direction. App. 48 (Bumatay, J., dissenting). If the State cannot require mask wearing and social distancing inside the home because of the special privacy interests at stake, surely the far *more* draconian step of banning or significantly curtailing gatherings in the home should be constitutionally off limits. *See City of Ladue v. Gilleo*, 512 U.S. 43, 58 (1994) (recognizing the “special respect for individual liberty in the home [that] has long been part of our culture and our law,” including the “special resonance” for individual liberty “when the government seeks to constrain a person’s ability to *speak* there”).

As this Court has repeatedly recognized, “the home is sacred in Fourth Amendment terms not primarily because of the occupants’ possessory interests in the premises, but because of their privacy interests in the activities that take place within.” *Segura v. United States*, 468 U.S. 796, 810 (1984); accord *U.S. Dep’t of Def. v. Fed. Lab. Rels. Auth.*, 510 U.S. 487, 501 (1994) (“[T]he privacy of the home ... is accorded special consideration in our Constitution, laws, and traditions.”). Yet instead of providing special deference for religious activities within the sanctity of the home, the State has imposed restrictions typically associated with authoritarian regimes that asylees try to escape. See, e.g., *Jin Yun Xiao v. Att’y Gen. of U.S.*, 230 F. App’x 139, 141 (3d Cir. 2007) (remanding claims for asylum where Chinese police came to a resident’s home “when she was leading a Bible study group, threatened and cursed her, and accused her of holding an illegal gathering”).

Finally, the order fails narrow tailoring because to the extent the State is seeking to reduce sickness, hospitalizations, and death, there are far less restrictive means available than a blanket restriction on gatherings. Specifically, as Applicants’ experts explained, the State could target its interventions to protect the most vulnerable, including those in nursing homes and long-term care facilities, and those receiving in-home services. See 2-ER-139–41; ¶¶50–55; 2-ER-179 ¶¶95–104. The State could further implement increased testing for workers at these locations, reduce staff rotations, and test visitors. 2-ER-182–83 ¶¶100–02; 2-ER-140 ¶51. Other States have avoided the level of adverse health outcomes California has suffered while

imposing far less draconian restrictions on gatherings than California. *See* 2-ER-129 ¶23; 2-ER-177–78 ¶89.⁶

C. The Ninth Circuit’s Decision Cannot Be Squared With This Court’s Recent Opinions And Sows Confusion Regarding The Scope Of The First Amendment’s Protections

Apart from *South Bay II* and *Gateway City Church*, the decision by the panel majority betrayed a fundamental misunderstanding of the First Amendment which, if allowed to stand, would sow confusion in the lower courts. Specifically, the panel majority declined to follow *Diocese of Brooklyn*, *South Bay II*, and *Gateway City Church* because it concluded that these precedents apply only to “houses of worship.” App. 12. In the words of the panel majority, this Court “compared religious activity to commercial activity” only “in the context of comparing public-facing houses of worship to public-facing businesses.” App. 14. But “[b]y limiting these precedents to houses of worship, the majority loses sight of *why* houses of worship are protected at all: because of the religious exercise that occurs therein.” App. 46 (Bumatay, J., dissenting). “The Constitution shields churches, synagogues, and mosques not because of their magnificent architecture or superlative acoustics, but because they are a sanctuary for religious observers to practice their faith.” *Id.*

⁶ For example, Michigan provided a blanket exemption from its gathering order for all constitutionally protected conduct. *See, e.g.,* Michigan Gatherings and Face Mask Order ¶ 10.g (Dec. 18, 2020), <https://tinyurl.com/d3vp2wmk> (“Nothing in this order should be taken to infringe ... protections guaranteed by the state or federal constitution under these emergency circumstances.”). In recent days, moreover, many states have lifted all restrictions, including capacity limitations and mask requirements.

The idea that religious practice is worthy of protection no matter where it happens is deeply embedded in this nation’s history and traditions. As James Madison observed, “[t]he religion [] of every man must be left to the conviction and conscience of every man; and it is the right of every man to exercise it as [he] may dictate.” James Madison, *Memorial and Remonstrance Against Religious Assessments* (June 20, 1785), reprinted in *Selected Writings of James Madison* 21, 22 (Ralph Ketcham ed., 2006). Indeed, the Founders encouraged explicit protection for religious freedom in the Bill of Rights because in “[t]he new plan,” there was “no declaration[] that all men have a natural and unalienable right to worship Almighty God, according to the dictates of their own conscience and understanding.” *Letters of Centinel II*, reprinted in 2 *The Complete Anti-Federalist* 143, 152 (Herbert J. Storing ed., 1981); James C. Phillips, *Is U.S. Legal Scholarship "Losing [Its] Religion" or Just Playing Favorites?: An Empirical Investigation*, 1998-2012, 2018 Pepp. L. Rev. 139, 219 n. 98 (2018) (“Free exercise issues involve religious freedom or liberty—the ability of one to not just worship, but to live one’s religion outside of the confines of a church/synagogue/mosque.”).

Beyond history and tradition, this Court has declared that the “Free Exercise Clause[] requires government respect for, and noninterference with, the religious beliefs and practices of our Nation’s people.” *Cutter v. Wilkinson*, 544 U.S. 709, 719 (2005). This is because to afford special treatment only to conventionally defined “church[es]” while denying it to religious activities “which are organized for a religious purpose and have sincerely held religious tenets,” but are not conventional

“houses of worship,” would be to discriminate on the basis of religion. *Spencer v. World Vision, Inc.*, 633 F.3d 723, 728 (9th Cir. 2011) (O’Scannlain, J., concurring). As this Court recognized in striking down laws that created differential treatment between “well-established churches” and “churches which are new and lacking in constituency,” the Free Exercise clause prohibits the government from “mak[ing] explicit and deliberate distinctions between different religious organizations.” *Larson v. Valente*, 456 U.S. 228, 246 n.23 (1982). Equally clear is this Court’s aversion to governments or courts sifting through personal beliefs and practices to determine whether they’re sufficiently religious under the Free Exercise Clause. *See, e.g., Mitchell v. Helms*, 530 U.S. 793, 828 (2000) (plurality opinion) (“It is well established, in numerous other contexts, that *courts* should refrain from trolling through a person’s ... religious beliefs.”) (emphasis added); *see also Capitol Hill Baptist Church v. Bowser*, 2020 WL 5995126, at *5 (D.D.C. Oct. 9, 2020) (“It is for the Church, not the District or this Court, to define for itself the meaning of ‘not forsaking the assembling of ourselves together.’”) (quoting Hebrews 10:25)).

Here, neither Wong nor Busch, nor millions of other Christians, view the “church [as] a building” only. *First Pentecostal Church of Holly Springs v. City of Holly Springs, Mississippi*, 959 F.3d 669, 670–71 (5th Cir. 2020) (Willett, J., concurring) (“When the New Testament speaks of the church, it never refers to brick-and-mortar places where people gather, but to flesh-and-blood people who gather together. Think people, not steeple.”); *see also Engel v. Vitale*, 370 U.S. 421, 442 n.7 (1962) (Douglas, J. concurring) (“The First Amendment put an end to placing any one

church in a preferred position.”); *Vidal v. Girard’s Ex’rs*, 43 U.S. 127, 175 (1844) (“Different sects have different forms of worship, but all agree that preaching is indispensable.”). Instead, in-home “[c]ommunal worship, congregational study, and collective prayer are central tenants of [their] faith and ministry.” App. 197 ¶5; App. 201 ¶5. The panel majority thus erred in limiting this Court’s recent precedents to “Houses of Worship.” This Court should correct that error.

II. The Equities Weigh Strongly In Favor Of Injunctive Relief

A. The State’s Violation Of Applicants’ Constitutional Rights Will Continue To Cause Irreparable Harm Absent Injunctive Relief.

“There can be no question that the challenged restrictions, if enforced, will cause irreparable harm,” because it is well-settled that “[t]he loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.” *Diocese of Brooklyn*, 141 S. Ct. at 67 (quoting *Elrod v. Burns*, 427 U.S. 347, 373 (1976)). Here, as the district court correctly found, Wong and Busch established irreparable harm based on the State’s deprivation of religious freedoms. App. 127–28; *see also South Bay United Pentecostal Church v. Newsom*, 985 F.3d 1128, 1149 (9th Cir. 2021) (“We agree that South Bay is suffering irreparable harm by not being able to hold worship services in the Pentecostal model to which it subscribes.”). The Ninth Circuit did not disturb that ruling even though it erroneously held that the Gatherings Guidance does not violate the First Amendment. Judge Bumatay, who correctly held that Wong and Busch had demonstrated a likelihood of success and thus addressed the equities, concluded that “[t]he irreparable harm

factor also cuts strongly in favor of granting the injunction” because, “[a]s enforced, the household limitation bars Wong and Busch from hosting in-home Bible studies or communal prayers with their group of fellow worshipers.” App. 49 (Bumatay, J., dissenting). The Gatherings Guidance—like the Blueprint itself—has no termination date and will continue to apply even when Santa Clara County transitions to Tier 4. Accordingly, “absent injunctive relief, [Wong and Busch’s] religious practices will continue to be interrupted for the foreseeable future.” App. 50 (Bumatay, J., dissenting).

B. The Balance Of Hardships And Public Interest Likewise Favor Injunctive Relief.

The balance of equities factor focuses on the “effect on each party of the granting or withholding of the requested relief.” *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 24 (2008). “The public interest inquiry primarily addresses impact on non-parties rather than parties.” *League of Wilderness Defs/Blue Mountain Biodiversity Project v. Connaughton*, 752 F.3d 755, 766 (9th Cir. 2014). When the government is the defendant, the analyses of these two “factors merge.” *Nken v. Holder*, 556 U.S. 418, 435 (2009).

A preliminary injunction is warranted here because “it is always in the public interest to prevent the violation of a party’s constitutional rights.” *Am. Bev. Ass’n v. City and Cty. of S.F.*, 916 F.3d 749, 758 (9th Cir. 2019) (en banc). The State argued below that an injunction is not in the public interest because it could cause “the State’s hospital system” to be “overwhelmed.” But there are now roughly *one tenth* as

many patients hospitalized with COVID-19 in California as there were during the high point of the winter surge in early January, and the numbers continue to trend downward.⁷ Although it is *possible* that the hospital system will be threatened someday in the future, the State cannot justify endless restrictions based on such illusory threats. *See South Bay II*, 141 S. Ct. at 720 (statement of Gorsuch, J.) (“[I]t is too late for the State to defend extreme measures with claims of temporary exigency, if it ever could.”).

The State engaged in similar fearmongering in *South Bay II*, claiming that “the relief plaintiffs seek from this Court would imperil public health.” *See* State Br., Nos. 20A136, 20A137 at 56 (Jan. 29, 2021). But in the nearly two months since this Court enjoined the State’s total prohibition on indoor worship, cases, hospitalizations, and deaths have all sharply decreased.⁸ For example, on February 5—the day of this Court’s *South Bay II* decision—the 7-day rolling average of positive cases per 100,000 was 26.1.⁹ By March 30, the 7-day rolling average per 100,000 had dropped below 5.¹⁰ Given the State’s dismal track record in predicting the course of the disease, this Court can safely ignore any protestations that an injunction would jeopardize public health.

⁷ On January 6, 2021, the State reported that there were 22,853 hospitalized patients with COVID-19. CDPH, *Tracking COVID-19 in California*, <https://covid19.ca.gov/state-dashboard/>. By March 31, 2021, the number of hospitalized COVID-19 patients had dropped to 2,583. *Id.*

⁸ *Id.*

⁹ *Id.*

¹⁰ *Id.*

The State’s justification for continued intrusions on religious liberty is further undermined by the widespread distribution of vaccines in the State to the most vulnerable—the elderly, health care workers, and those with preexisting conditions. Although the overall infection fatality rate (IFR) from COVID-19 has been calculated around .27%, for those under age 70 the IFR is only .05%, while for those above 70 the IFR is 5.4%.¹¹ In other words, the public health risks of COVID-19 are heavily concentrated in the older population. In defending society-wide lockdowns, the State has argued—and the district court agreed—that the only way to protect the most vulnerable is to reduce the overall spread of the virus in the community. *See* App. 96 (holding that it was rational “to place restrictions on the entire population because vulnerable people have extensive contact with non-vulnerable individuals in long-term care facilities, multigenerational homes, and essential workplaces”). But even if that was true in 2020 (which it was not¹²) any justification for such sweeping lockdowns ended with the arrival of a vaccine.¹³ As ample data has confirmed,

¹¹ 5-ER-946–47; *see also* Centers for Disease Control and Prevention, *COVID-19 Pandemic Planning Scenarios*, <https://www.cdc.gov/coronavirus/2019-ncov/hcp/planning-scenarios.html>. The IFR is effectively zero for those under 20, for those ages 20-49 the IFR it is .02%, and for those between 50 and 70 it is .05%.

¹² Applicants’ expert, Dr. Jayanta Bhattacharya, has cogently explained that a system of “focused protection” could be used to prevent the disease from infecting those most vulnerable to sickness and death while allowing the rest of the community to go about their lives with reasonable precautions. 2-ER-136–38 ¶¶ 42–45. Focused protection makes even more sense now that we have a vaccine that can help protect the vulnerable and hasten us toward herd immunity.

¹³ Governor Newsom has now made the vaccine available to everyone over 50, and 20.7% of Californians are now fully vaccinated and another 17.3% are partially vaccinated. *See* Vaccines, Cal. Dep’t of Public Health, <https://covid19.ca.gov/vaccines/#California-vaccines-dashboard>.

COVID-19 poses a serious health risk to only a small sector of the population. That sector has been, or soon will be, vaccinated.

The State also argued below that the threat of “new variants” support perpetual restrictions. But there is no evidence that any of the new variants are more dangerous than the previous ones, and the mere possibility of unknown health threats in the future cannot justify indefinite restrictions on liberty. As members of this Court have recognized, “[g]overnment actors have been moving the goalposts on pandemic-related sacrifices for months, adopting new benchmarks that always seem to put restoration of liberty just around the corner.” *South Bay II*, 141 S. Ct. at 720 (Statement of Gorsuch, J.). It is time for California to turn the corner and cease its relentless persecution of the faithful.

III. In The Alternative, The Court Should Grant Certiorari Before Judgment

In the alternative to entering an injunction pending appeal, the Court should grant certiorari before judgment in the Court of Appeals and enjoin the Governor’s actions pending disposition by this Court. *See* 28 U.S.C. § 2101(e).

CONCLUSION

This Court undoubtedly has better things to do than sheepdog California and the Ninth Circuit. Yet until State leaders and lower court judges respect the boundaries established by the Constitution, the task of protecting religious believers from overzealous government officials remains this Court’s cross to bear. For the reasons set forth above, Applicants respectfully ask this Court to grant the

Application, or grant certiorari before judgment, and enjoin Respondents from continuing their unconstitutional restrictions on religious liberty.

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FRANCES BEAUDET; MAYA MANSOUR,
APPLICANTS,

v.

GAVIN NEWSOM; ROB BONTA; TOMÁS J. ARAGÓN;
JEFFREY V. SMITH; SARA H. CODY.
RESPONDENTS.

**To the Honorable Elena Kagan
Associate Justice of the Supreme Court of the United States and
Circuit Justice for the Ninth Circuit**

**APPENDIX TO
EMERGENCY APPLICATION FOR WRIT OF INJUNCTION OR IN THE ALTERNATIVE
FOR CERTIORARI BEFORE JUDGMENT OR SUMMARY REVERSAL
RELIEF REQUESTED BY SATURDAY, APRIL 3, 2021**

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